

STATE OF ILLINOIS, CIRCUIT COURT Cook _____ COUNTY	MOTION TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS	<i>For Court Use Only</i>
Instructions ▼ Directly above, enter the name of the county where you will file the <i>Motion</i> . Enter your name, birth date, race, and gender. List any other names you used when arrested on the cases listed on this form. If the Circuit Clerk gave you a new case number, enter it to the right.	Request of: Jordan Avery Reyes Your name (<i>First, middle, last name</i>) None Other names used in these cases 06/14/1988 Date of birth Hispanic Race Nonbinary Gender	2021-CF-004217 Case Number (<i>if the Circuit Clerk assigns a new number</i>)
Enter the number for all eligible cannabis convictions on your criminal record in this county.	Case numbers of all eligible cannabis convictions on your record in this county: 2021-CF-004217 _____ _____ _____ _____ _____ _____ _____ _____ _____ _____ _____ _____ _____ _____ _____ _____ _____ _____	

Note: If you are not a citizen of the United States, consult with an immigration lawyer before using these forms.
Noticia: Si no es ciudadano de los Estados Unidos, consulte con un abogado de inmigración antes de usando estas formas.

In 1 , you cannot ask to vacate and expunge a criminal conviction unless one of the special situations listed under checkboxes a or b describes your case.	1. All of the cases listed have resulted in convictions for: a. ☐ Misdemeanor cannabis offenses under 720 ILCS 550/4 or 720 ILCS 550/5 ; AND/OR b. ☐ Class 4 felony cannabis offense under 720 ILCS 550/4 or 720 ILCS 550/5 .
In 3 , you must have completed each sentence, such as probation, or satisfied all conditions imposed by the convictions listed above.	2. ☐ I was convicted before June 25, 2019. 3. ☐ I have completed the sentences or conditions imposed by the conviction in each of the cases listed.

See *How to Vacate and Expunge Eligible Cannabis Convictions* to make sure all of your cases are convictions that are eligible to be vacated and expunged. For help filling out this table, see pages 4 & 5 in *How to Vacate and Expunge Eligible Cannabis Convictions*.

DO NOT list any dismissed cases, satisfactorily completed supervisions or satisfactorily completed qualified probations in this section. DO NOT list any cases where you received convictions for non-Cannabis charges.

In 4, enter all eligible convictions on your record in this county. Enter all charges for each case number.

If you need more room for your arrests or cases, use the *Additional Cannabis Convictions* form, check the box and attach it.

4. ☒ I ask the court to **VACATE AND EXPUNGE** the following misdemeanor or Class 4 felony convictions under Section 4 or 5 of the Cannabis Control Act from the records of the arresting agency, the Circuit Clerk, and the Illinois State Police. I was arrested, or charged without being arrested, on the dates and for the offenses listed below:

Case Number	Arresting Agency	Cannabis Conviction (check the type of Cannabis conviction)		Date of Arrest
		Misdemeanor	☐	
2021-CF-004217	Chicago Police Department	Class 4 Felony	☐	03/12/2021
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
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		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	
		Misdemeanor	☐	
		Class 4 Felony	☐	

☐ I have listed additional cases on the attached *Additional Cannabis Convictions* form.

In 5, you must fill in the blanks in **a-c**. For **5b**, list your age when you were last arrested for a case listed in Section 4. For **5c**, count the number of years (or months if a year has not passed) since your last conviction for a case listed in Section 4.

In **6**, explain to the Court why you want to vacate and expunge your cases. See page 5 of *How to Vacate & Expunge Eligible Cannabis Convictions* for more information on filling out this section.

Under Illinois [Supreme Court Rule 137](#), your signature means that you have read the document, that to the best of your belief, it is true and correct and that you are not filing it for an improper purpose, such as to cause delay.

If you are completing this form on a computer, sign your name by typing it. If you are completing it by hand, sign and print your name.

Enter your complete address, telephone number, and email address, if you have one.

5. a. I am currently _____ years old.
b. I was _____ years old when I was last arrested for a case listed on this *Motion*.
c. It has been at least _____ years or _____ months since my last conviction listed on this *Motion*.

6. I am seeking to vacate and expunge the convictions listed above because I have been or may be denied housing, educational, employment, or other opportunities because of the conviction(s) (please explain):

 $|S|$

Your Signature

Date _____

Prepared By:

Jordan Avery Reyes

Print Name _____

412 West Madison Street

Street Address

Chicago, IL 60606

City, State, ZIP

Attorney # (if any)

312-555-0142

Telephone

jordan.reyes@example.org

Email

GETTING COURT DOCUMENTS BY EMAIL: You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss important information, notice of court dates, or documents from other parties.

STATE OF ILLINOIS, CIRCUIT COURT <u>Cook</u> COUNTY	ADDITIONAL CANNABIS CONVICTIONS	<i>For Court Use Only</i>
Instructions ▼ Directly above, enter the name of the county where you will file the <i>Motion</i> . Enter your name, birth date, race, and gender. List any other names you used when convicted on the cases listed on this form. If the Circuit Clerk gave you a new case number, enter it to the right.	Request of: <u>Jordan Avery Reyes</u> Your name (<i>First, middle, last name</i>) <u>None</u> Other names used in these cases <u>06/14/1988</u> Date of birth <u>Hispanic</u> Race <u>Nonbinary</u> Gender	 <u>2021-CF-004217</u> Case Number (<i>if the Circuit Clerk assigns a new number</i>)
Enter the number for all eligible cannabis convictions on your criminal record in this county.	Case numbers of additional eligible cannabis convictions on your record in this county: <u>2021-CF-004217</u> 	

See *How to Vacate and Expunge Eligible Cannabis Convictions* to make sure all of your cases are convictions that are eligible to vacate and expunge. For help filling out this table, see page 4 in *How to Vacate and Expunge Eligible Cannabis Convictions*.

DO NOT list any dismissed cases, satisfactorily completed supervisions or satisfactorily completed qualified probations in this section. DO NOT list any cases where you received convictions for non-Cannabis charges.

In 4, enter all eligible convictions on your record in this county. Enter all convictions for each case number.

4. ☐ I ask the court to **VACATE AND DISMISS** the following misdemeanor or Class 4 felony convictions under Section 4 or 5 of the Cannabis Control Act from the records of the Arresting Agency, the Circuit Clerk, and the Illinois State Police. I was arrested, or charged without being arrested, on the dates and for the offenses listed below:

Case Number	Arresting Agency	Cannabis Conviction (check the type of Cannabis conviction)	Date of Arrest
		Misdemeanor ☐	
		Class 4 Felony ☐	
		Misdemeanor ☐	
		Class 4 Felony ☐	
		Misdemeanor ☐	
		Class 4 Felony ☐	
		Misdemeanor ☐	
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		Class 4 Felony	☐	
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		Misdemeanor	☐	
		Class 4 Felony	☐	

Under Illinois [Supreme Court Rule 137](#), your signature means that you have read the document, that to the best of your belief, it is true and correct and that you are not filing it for an improper purpose, such as to cause delay.

If you are completing this form on a computer, sign your name by typing it. If you are completing it by hand, sign and print your name.

Enter your complete address, telephone number, and email address, if you have one.

Prepared by: _____
Name

/s/ _____

Your Signature

Jordan Avery Reyes

Print Your Name

312-555-0142

Telephone

Attorney # (if any)

412 West Madison Street

Street Address

Chicago, IL 60606

City, State, ZIP

jordan.reyes@example.org

Email

GETTING COURT DOCUMENTS BY EMAIL: You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss important information, notice of court dates, or documents from other parties.

Getting Started

Motion to Vacate & Expunge Eligible Cannabis Convictions

IMPORTANT: This getting started guide and the instructions are not legal advice. They are only meant to help you learn how to file a *Motion to Vacate & Expunge Eligible Cannabis Convictions* form. Your use of the forms does not guarantee your Motion will be granted.

NOTE: If you are not a citizen of the United States, consult with an immigration lawyer before using these forms.

NOTICIA: Si no es ciudadano de los Estados Unidos, consulte con un abogado de inmigración antes de usando estas formas.

To learn how to fill out the forms and file them with the court, read the *HOW TO FILE A MOTION TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS* instruction booklet and the instructions on the forms.

Name of forms:	• <i>Motion to Vacate & Expunge Eligible Cannabis Convictions</i> • <i>Notice of Motion to Vacate & Expunge Eligible Cannabis Convictions</i> • <i>Order to Vacate & Expunge Eligible Cannabis Convictions</i>
Purpose of the forms:	To get a court order vacating and expunging eligible cannabis conviction(s) under the Cannabis Regulation & Tax Act .
Types of cases the forms CAN be used for:	Misdemeanor and Class 4 felony convictions for Sections 4 and 5 of the Cannabis Control Act .
Types of cases the forms CANNOT be used for:	• Arrests or convictions for other non-cannabis offenses. • Arrests or other cases not leading to conviction for a cannabis offense. • Convictions for Class 3, Class 2, Class 1 or Class X Cannabis offenses. • Out of state and federal cannabis conviction records.
Cost to file the forms:	There may be a fee to file your <i>Motion to Vacate & Expunge Eligible Cannabis Convictions</i> . If you cannot afford to pay the filing fee, you can ask the court to file for free or at a reduced cost by filing the <i>Application for Waiver of Court Fees</i> found at: illinoiscourts.gov/documents-and-forms/approved-forms .
Special information or papers needed to complete the forms:	• Dates of arrests and class of misdemeanor or felony charges; • Outcome of court cases: AND • Addresses of the county State's Attorney's office that filed charges against you.
Statutes covering the forms:	410 ILCS 705
Where to find the forms and instruction sheet:	illinoiscourts.gov/documents-and-forms/approved-forms
For more information:	Read the instruction booklet called <i>How to File a Motion to Vacate & Expunge Eligible Cannabis Convictions</i> . You may also find more information, resources, and the location of your local legal self-help center at illinoislegalaid.org/get-legal-help/lshc-directory or the Office of the State Appellate Defender at Illinois.gov/osad/Expungement .

Find Illinois Supreme Court approved forms at: illinoiscourts.gov/documents-and-forms/approved-forms.

STATE OF ILLINOIS, CIRCUIT COURT Cook COUNTY	NOTICE OF COURT DATE FOR MOTION TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS	<i>For Court Use Only</i>
Instructions ▼ Directly above, enter the name of county where you will file the <i>Motion</i> . Enter your name, birth date, race, and gender. List any other names you used when arrested on the cases listed on this form. If the Circuit Clerk gave you a new case number, enter it to the right.	Request of: Jordan Avery Reyes Your name (<i>First, middle, last name</i>) None Other names used in these cases 06/14/1988 Hispanic Nonbinary Date of birth Race Gender	 2021-CF-004217 Case Number (<i>if the Circuit Clerk assigns a new number</i>)
Enter the number for all eligible cannabis convictions on your criminal record in this county.	Case Numbers of all Eligible Cannabis Convictions on your Record in this County: 2021-CF-004217 ☐ I have listed additional cases on the attached <i>Additional Notice of Court Date for Motion to Vacate & Expunge Eligible Cannabis Convictions</i> form	

In **1a**, enter the date and time of your hearing. The Circuit Clerk will give you the date and time of the hearing when you file your *Motion*.

In **1b**, enter the address of the court and court room number for the hearing.

Under the Code of Civil Procedure, [735 ILCS 5/1-109](#), making a statement on this form that you know to be false is perjury, a Class 3 Felony.

If you are completing this form on a computer, sign your name by typing it. If you are completing it by hand, sign and print your name.

Enter your complete address, telephone number, and email address, if you have one.

1. Hearing Information

I filed a *Motion to Vacate & Expunge Eligible Cannabis Convictions* with the court.
The hearing for the *Motion* I filed is scheduled for:

a. Date: _____ Time: _____ ☐ a.m. ☐ p.m.

b. Address _____
Street City State ZIP

Courtroom: _____

I certify that everything in the *Notice of Motion to Vacate & Expunge Eligible Cannabis Convictions* is true and correct. I understand that making a false statement on this form is Perjury and has penalties provided by law under [735 ILCS 5/1-109](#).

/s/ _____
Your Signature

Jordan Avery Reyes
Print Your Name

312-555-0142
Telephone

412 West Madison Street
Street Address

Chicago, IL 60606
City, State, ZIP

jordan.reyes@example.org
Email

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In 2, enter the State's Attorney office that prosecuted your cases. This contact information is publicly available online or from your county Circuit Clerk at: illinoiscourts.gov/courts/circuit-court/circuit-court-clerks/.

In 3, enter the name of the county where you are filing your *Motion*.

In 4, check the box if you have or are getting a fee waiver.

2. To:

County State's Attorney

*County Name**Street Address**City**State**ZIP*

3. I have filed a *Motion to Vacate & Expunge Eligible Cannabis Convictions* with the Circuit Clerk of _____ County, Illinois.

County Name

4. ☐ I am seeking a fee waiver under Supreme Court Rule 298, or have attached an *Order* waiving my filing and State Police fees.

5. The Circuit Clerk will mail a copy of this *Notice* and the *Motion* to the county State's Attorney listed.

*/s/**Your Signature**Date*Prepared by: Jordan Avery ReyesStreet Address: 412 West Madison StreetCity, State, ZIP: Chicago, IL 60606Phone Number: 312-555-0142

Attorney # (if any): _____

If you are completing this form on a computer, sign your name by typing it. If you are completing it by hand, sign and print your name.

DO NOT fill out this section. The Circuit Clerk will sign and mail it.

CERTIFICATE OF MAILING

The undersigned certifies that the above *Notice* and attached documents were placed in the U.S. mail with first class postage prepaid to the State's Attorney listed above.

*Signature of Circuit Clerk**Name of Deputy Clerk*

STATE OF ILLINOIS, CIRCUIT COURT Cook COUNTY	ORDER GRANTING OR DENYING MOTION TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS	<i>For Court Use Only</i>
Instructions ▼ Directly above, enter the name of the county where you will file the <i>Motion</i> . Enter your name, birth date, race, and gender. List any other names you used when convicted on the cases listed on this form. If the Circuit Clerk gave you a new case number, enter it to the right.	Request of: <u>Jordan Avery Reyes</u> Your name (<i>First, middle, last name</i>) <u>None</u> Other names used in these cases <u>06/14/1988</u> Date of birth <u>Hispanic</u> Race <u>Nonbinary</u> Gender	 <u>2021-CF-004217</u> Case Number (<i>if the Circuit Clerk assigns a new number</i>)
Enter the number for all eligible cannabis convictions on your criminal record in this county.	Case numbers of all eligible cannabis convictions on your record in this county: <u>2021-CF-004217</u> If you have more than 18 eligible cannabis convictions, fill out another <i>Order</i>.	

DO NOT fill in these lines. The judge will fill out and check the correct boxes.

IT IS ORDERED:

- ☐ Your *Motion to Vacate & Expunge Eligible Cannabis Convictions* is GRANTED for all cases listed on this order (*If there are more cases, they are listed on a separate order*); **OR**
- ☐ Your *Motion to Vacate & Expunge Eligible Cannabis Convictions* is GRANTED for these cases:

The finding of guilty, sentence, and judgment of conviction for the granted cases are vacated. Further proceedings are hereby dismissed. The expungement is granted for the above cases, and within 60 days of this order:

- The Arresting Agencies must expunge these records as required by law.
- The Clerk of the Circuit Court must impound these records as required by law.
- The Illinois State Police must expunge these records as required by law.
- The Illinois State Police and the Arresting Agencies must request the return of all arrest or conviction records from any agencies that were previously notified of these records.

- ☐ Your *Motion to Vacate & Expunge Eligible Cannabis Convictions* is DENIED for all cases listed on this order (*If there are other cases, they are listed on a separate order*); **OR**
- ☐ Your *Motion to Vacate & Expunge Eligible Cannabis Convictions* is DENIED for these cases:

The reason your Request is denied for these cases: (check all that apply):

- ☐ Your cases are not legally eligible to be vacated & expunged.
- ☐ Law enforcement's interest in retaining your criminal records is greater than your interest in vacating and expunging your records.
- ☐ Other:

DO NOT fill in these lines. The judge will sign and enter date here.

ENTERED:

Judge: _____ Date: _____

Enter the name and contact information of the person completing the *Order*.

Prepared by:	<u>Jordan Avery Reyes</u>	Attorney # (if any):	_____
Street Address:	<u>412 West Madison Street</u>	Phone:	<u>312-555-0142</u>
City, State, ZIP:	<u>Chicago, IL 60606</u>	Email:	<u>jordan.reyes@example.org</u>